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THE MORNING TRIBUNE.

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VOLUME 5. TAMPA, FLORIDA, FRIDAY, DECEMBER 29, 1899. NO. 309.

SWEAR THAT ALLEN SHOT

Defense Brings Out Sensational Evidence.

ATTEMPT AT BRIBERY CHARGED

Two witnesses Say That Licata Did the Shooting—Others Accuse Charles Allen and Henry Linebaugh—Flat Contradictions.

When the second day of the Licata murder trial closed at 6:15 last night, twenty-four witnesses had been examined—ten for the state and fourteen for the defense.

The trial is by no means concluded yet. This morning, at 8 o'clock, the jury will go out to the scene of the shooting, and will have an opportunity of viewing the localities so frequently alluded to in the testimony.

At 9 o'clock, the jurors will return to the courtroom, and more witnesses will be introduced. It may be Saturday noon before the case is finished.

Yesterday morning the state put its best foot foremost, and Colonel Knight had a string of witnesses who threw some light on the tangled circumstances. In the afternoon, the defense had its innings, and several witnesses swore positively that the shooting was done by other parties than Licata.

As the evidence stood at the hour of adjournment last night, it is probably the most conflicting lot that was ever thrown at a hapless jury. The case will doubtless resolve itself into a question of veracity, which will puzzle the jury in no small degree.

The first witness sworn yesterday morning was John Geiger. He testified to what he saw at the scene of the trouble over the cow. The cross-examination of this witness was very severe, and the defense claims that his story was at variance with his statements before the coroner's jury.

J. W. Studstill, brother of the murdered man, testified that he saw Joe Licata shoot directly at Allen, who jumped out of the way; he did not know who fired the second shot.

George Shearhouse, policeman in Fort Brooke, told what he saw of the affair. He saw Joe Licata fire the second shot.

C. J. Allen, the principal witness for the state, next took the stand. Allen is the man who went to see Antonio Licata about the cow, and at whom, it is charged, Joe Licata fired the shot that killed Studstill. Allen varied from the other witnesses in stating that Joe Licata fired directly at Studstill when he fired the second shot. Colonel Sparkman subjected the witness to a rigid cross-examination, which confused him to some extent. He however, stuck to the main statements of his direct testimony.

Frank Sylvester lived in a house on the lot adjoining that of Antonio Licata. He was in the yard at work when the trouble commenced, and went inside the house so as not to see too much of it. He added some new statements to the mass of those elicited by the lawyers.

Ed. Stanley, colored, swore that he accompanied Joe Licata to the scene of the shooting. He could not swear positively that Licata fired the shot.

When court reconvened for the afternoon session, C. J. Allen was recalled to the stand, by the defense. He was interrogated only in reference to certain comparisons of his evidence in the morning and that given by him at the coroner's inquest.

Sheriff T. K. Spencer told the story of his arrest of Licata. He had found him beyond West Tampa, in the woods, eight days after the killing. On cross-examination, the sheriff stated that the attorneys for Licata had notified him that the Italian wished to surrender himself to the authorities, and that Messrs. Macfarlane & Raney accompanied him to the scene of the arrest. Licata said he wanted protection. The sheriff said he had heard of threats being made against Licata, although none had been made to him personally. Parties from Pasco county had called at the office to inquire what steps were being taken to apprehend Licata. Attorney Macfarlane had told him, the day after the shooting, that he would advise Licata to give himself up as soon as danger of violence being offered him had passed.

Here State's Attorney Knight announced that the state could rest.

The defense first introduced Joe Verri, the Italian barber. Verri said that Antonio Licata and Philip Licata, his son, C. J. Allen and himself had a conversation two or three days before the killing, at the corner of Franklin and Lafayette streets. Allen told Licata that he wanted his cow, and Licata replied that he could get it if he would repay him the money he had expended, and get an order from Chief Woodward. Allen said he would have the cow anyhow, if he had to come after it with a shotgun. Policeman Sherrill came up and joined in the conversation.

Philip Licata, son of Antonio Licata, corroborated Verri's account of the conversation above related.

Antonio Licata, the brother of the man on trial, proved an interesting witness. His story, briefly, was as follows: "I bought the cow from Captain Johnson, of the police department, for $25.50. Was approached by Allen in reference to the cow, and told him he could get it if he would pay the money and get an order from the marshal. Allen said he would have the cow if he had to bring a shotgun with him. On the day of the shooting, Allen and Linebaugh came to me, near my house, at 4 o'clock, to get the cow. I asked him for an order from the chief. Allen said he didn't give a d—— for the chief, and tried to catch the cow, which ran around the lot and into the stable. I got in the stable, and tried to shut the door, but Allen and Linebaugh jerked it open, and Allen grabbed my by the chest. My wife came in and Allen knocked her down, and then shot. My brother, Joe, was coming in the door, and fell down when the first shot was fired. Two shots were fired. Allen fired the first, Linebaugh the second." The witness went over the story, illustrating it by the diagram of the locality. Colonel Knight did not cross-examine him.

Vito Anello, Italian, testified that he saw the difficulty in the stable. Allen was just inside the door, and Linebaugh was in the doorway. Saw Allen fire first shot. Linebaugh drew a pistol, and witness grabbed him, and tried to take it away. Linebaugh said, "Let me go or I'll shoot you." Witness turned him loose, and Linebaugh fired. No questions were asked this witness by the state.

Tomas Chilura, an Italian boy, 12 years old, saw Allen, Linebaugh and Licata chasing the cow. Linebaugh pulled a pistol and Anello tried to take it away from him. Then witness got scared and ran.

Marshal J. J. Stephens, of Fort Brooke, testified that Allen had spoken to him about his intention to get the cow from Licata. He told Allen that he had no right to go for the cow without reimbursing Licata. To this testimony Colonel Knight objected, but the court overruled the objection.

Jose Fernandez, foreman of the factory of Creagh, Gudknecht & Co., and a member of the firm, was the next witness. Fernandez is the Spaniard who, after his testimony at the coroner's inquest, was arrested for perjury. He said that he saw some of the difficulty from a window in the second story of the factory. Saw a man on horseback standing in the street. Joe Licata and his wife went to Antonio Licata's gate and then went back the way they came. He heard first shot, coming from back of Antonio's house. Man on horseback squirmed, his horse walked about thirty feet, then the man fell off. Joe Licata soon passed close to the dead man, going towards his own home. Saw another man come from behind the house and go toward railroad depot. Three shots were fired, not more than one minute apart. On the cross-examination Fernandez stated that Italians predominated among the workmen in his factory. Licata slightly stopped when he passed by Studstill's body. Colonel Knight asked the witness if it was not true that he had been arrested for perjury, but the court would not allow the question.

Macie Oliva, a Cuban woman, was watching the trouble from the corner of her fence. She lived next door to Antonio Licata, and could see into the barn. Saw Allen fire a shot towards Fifth avenue. Didn't see Studstill fall. Didn't know who fired second shot. The cross-examination elicited the statement that Allen and Studstill had a conversation at left fence before Allen went to the barn. Then Studstill got on his horse.

Pietro Chiluro Martino, Italian, workman at the cigar factory, witnessed the trouble from a window. First shot came from inside the barn. Was not fired by Licata. Licata fell down when first shot was fired, and was getting up when second was fired. He didn't see Studstill fall.

Francisco Goniglio, Italian, also watched the affair from a factory window. He corroborated Martino in his main statements.

Salvadore Reina, Italian, told practically the same story.

A mild sensation was injected by the testimony of E. H. Brack, an American, who lives in Fort Brooke. He said Linebaugh had approached him a few days after the shooting and asked him if he couldn't go to court and swear that he (Linebaugh) had no pistol at the scene of the killing. Wit-

(Continued on Eighth Page.)

MAY MEAN NEW MINISTRY

Salisbury About to Step From England's Helm.

YOUNGER MEN TO THE FRONT

Queen Persuades the Premier to Hold On Awhile, But All Depends On Lord Roberts—Balfour Visits the Queen at Windsor.

London, Dec. 28—(Special).—It is stated, regarding the rumor of Salisbury's resignation, that the premier did actually press the Queen to accept it on the ground of ill health, and that private sorrow had caused him to lose heart, and that the war crisis demanded a younger and more active counselor.

The Queen thereupon commanded Arthur Balfour to visit Windsor, and induced him to persuade his uncle to change his mind.

Salisbury finally consented to the Queen's wishes, but said he would avail himself of the first opportunity to resign.

If Roberts fails to turn the tide in South Africa, a government of national defense will probably be formed, with the Duke of Devonshire as premier, Roseberry as foreign secretary, Asquith as colonial secretary, and Fowler as war secretary.

The last two are imperialist liberals, and pledged to a prosecution of the war to the end.

NEW BANK AT BRAIDENTOWN.

Military Notes—Superintendent Sheats Has Had a Long Term.

Tallahassee, Dec. 28.—Letters patent were to-day issued incorporating the Bank of Manatee, at Braidentown, with a capital of $16,500. W. H. Venderipe is president.

The Franklin Rifles, Apalachicola, have elected J. P. Lovett captain, T. J. Moore first lieutenant, and Mingo Brown second lieutenant.

Capt. C. V. Roberts of the Ocala Rifles has tendered his resignation.

George L. McGahagin of the Ocala Rifles and C. V. Smith of the Leesburg Rifles have applied for discharges.

R. M. Blackburn of the Atlanta Constitution is here for the State Teachers' association.

The Methodist Sunday school held a delightful entertainment at the church Monday night, consisting of recitations and music, after which pranzones, candies, apples, etc., were distributed among the scholars.

Hon. William Sheats, state superintendent of public instruction for Florida, has held the office since January, 1893, which makes him longer in office than any state superintendent in the United States. Dr. N. C. Schaefer, who has been engaged as special lecturer for the State Teachers' association, stands next to Mr. Sheats in this respect, having held office since April, 1893. In all the other states there have been from one to three changes in this office.

Death of Thomas Faulkner.

Dover, Fla., Dec. 28—(Special).—A sad and sudden death occurred at this place Wednesday night. Mr. Thomas Faulkner attended a big dining in the neighborhood and ate heartily of stewed oysters and other delicacies, and in the afternoon feasted on ice cream and cake. A few hours later he was feeling unwell and walked out of the house and fell to the ground, and expired in a few moments. Interment took place this afternoon. His demise is sincerely regretted.

Cleveland Being Starved.

Princeton, N. J., Dec. 28—(Special).—Grover Cleveland is confined to his bed with rheumatism. He is able to eat only certain foods ordered by his physicians.

Are You in It?

If you are not you had better get in at once. There are only a few days left to get an advertisement in the Midwinter Edition of the Tribune. Three big presses are running night and day printing this mammoth edition, and the last forms will go to press the latter part of next week. If you have not as yet made arrangements to have your business advertised in this great publication, it behooves you to be on the alert.

Salvation Army.

The officers of the Salvation Army are doing all they can to make the Free Dinner to the poor, New Year's Day, a success. The good people of Tampa are responding liberally with contributions. All worthy poor are cordially invited. Dinner will commence at 1 p. m., at the hall, 1215 Franklin street.

CONSOLIDATION RATIFIED.

F. C. & P. and Southbound to Go Into One Company.

The Jacksonville Times-Union and Citizen says: "A meeting of the stockholders of the Florida Central & Peninsular Railroad Company was held in this city yesterday, something more than 241,000 shares of the stock being represented in person or by proxy.

"Resolutions were passed authorizing the consolidation of the company with the Southbound Railway Company, the consolidated company to be known as the Florida Central & Peninsular Consolidated Railway Company.

"It is supposed that this is the preliminary step to the consolidation with the Seaboard Air Line, the local consolidation being opposed by the Dutch Syndicate, representing a minority of the stock, about 22,000 shares.

"The resolutions were all defeated by the majority stockholders, the vote being in round numbers, 219,000 shares against 22,000. Evarts, Choate & Beaman represented the Dutch Syndicate, through their local attorney, Horatio Bisbee.

"Thomas F. Ryan, of New York, served notice on the stockholders that suits are pending in the Federal Courts of North Carolina and Virginia, to prevent the consolidation of roads in which Mr. Ryan is interested, with the Seaboard Air Line."

"Looking Backward."

We are very well satisfied with our Christmas trade, but we have some fine goods that were tied up by our crowded railroads. They were in too late for the rush, and are nice, new, nobby and all right. We shall slaughter them, as we prefer the cash to the goods—even lower than cost. Come and see us. Turner's jewelry and optical store, Southwest corner Franklin and Twiggs.

The Modern Mother

Has found that her little ones are improved more by the pleasant Syrup of Figs, when in need of the laxative effect of a general remedy, than by any other. Children enjoy it and it benefits them. The true remedy, Syrup of Figs, is manufactured by the California Fig Syrup Company only.

The New Manager.

Frank R. Diaz, a nephew of Vicente Guerra, has been appointed manager of the El Modelo cigar factory, to succeed Benjamin Cosio, who will have charge of a new enterprise in this line. Mr. Diaz is now manager of the Corina factory, and will, in future, direct the affairs of the two.

For Sale Cheap.

One L. C. Smith, hammerless, double-barrel, 12-gauge shotgun; original price $40.00; been in use only one month; will sell for half price if taken immediately. Address "C," care of Tribune.

K. of P.

All members of Bay Lodge No. 12, K. of P., are requested to attend the lodge at 7:30 p. m. to-night. Election of officers and other important business will be transacted.

Superintendent Here.

General Superintendent Bradford Dunham, of the Plant System, was in the city yesterday, making his headquarters in his private car.

If you are looking for real bargains in winter clothing, comforts, quilts and all heavy goods, you can save money by calling on S. Weisberg, the merchant prince of upper Franklin street, next to the Tribune office. He has an immense stock of this class of goods, and is selling it at prices that are really astonishing.

PRETTY STOCK OF
Diamonds and Jewelry
Imported Pottery, Cut Glass, Sterling Silver of all kinds. Umbrellas, etc., at
H. E. Adams
506 FRANKLIN STREET.
Will be pleased to show you my stock whether you buy or not.

JOHNSTON ON HIS METTLE

Senator Morgan's Opponent Talks Openly.

STANDS SQUARE ON PLATFORM

Says Morgan Has Lost Many Supporters By Nursing Opposition to Bryan—Opposed to Imperialism, and Want Free Silver.

New York, Dec. 28—(Special).—Governor Johnston, of Alabama, candidate for United States Senator, is in the city on private business.

He said to-day that he was standing squarely on the democratic national platform in canvassing the state.

"The democrats of my state," he said, "believe in the free silver issue, and want Bryan nominated. Before our campaign opened, Senator Morgan tried to create new issues and evade any positive support of Bryan and the present national platform."

His utterances probably cost him many votes, and he quickly discovered when on the stump that the people are for Bryan and free silver. Our people are opposed to imperialism and trusts, but free silver will be a main issue in the national campaign, and Bryan will be the next candidate."

Governor Johnston expresses perfect confidence in his election to succeed Morgan.

FIFTY-THREE MEN ACCUSED.

Number of Montana Legislators Involved in Clark Case.

Washington, Dec. 28.—Telegrams were sent to the United States marshal in Helena, Mont., to-night directing the service of subpoenas on twenty witnesses in the Clark contest case. Senator Chandler, chairman of the Privileges and Elections committee, and Senator Pettus, one of the democratic members, have been working on the details of the case, preparing for the hearings.

The first hearing will occur on January 6. It will be merely for the outlining of the case by counsel, and no witnesses will be examined.

In the printed matter presented to the committee thirty-nine members of the legislature are charged with having been bribed. In addition to those, fourteen are said to have been approached with offers, coming under the head of attempts to bribe.

The mileage and per diem of the witnesses will probably foot up to $35,000. Stenographic and other necessary expenses will probably run the total up to $40,000 or $50,000.

LAWTON FUND INCREASING.

Total Subscriptions Now Amount to More Than $31,000.

Washington, Dec. 27.—The subscriptions to the Lawton home fund received by General Corbin at the War Department up to date amount to $17,323.45. The total subscriptions now amount to $31,401.45.

Among the contributions to the fund received by Adjutant General Corbin to-day, was one from Mr. Lewis Case Ledyard, of New York, which contribution he said was made "in memory of my nephew, Lieutenant A. C. Ledyard, killed in action in Negros, December 8, 1899."

The funeral of the late Captain Fed. Fine occurred yesterday afternoon at 3:30. The interment was directed by Undertaker Tucker.

After a most satisfactory sale of Christmas goods, we offer the few remaining articles at especially low prices for the next few days. Tibbetts Bros.

Largest and Best Selected Stock at Low Prices.
Diamonds, Watches, Jewelry.
We are Selling Diamonds at Our Well Known
LOW PRICES
SOUTHERN LOAN & JEWELRY CO., 604 Franklin Street.

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